VANESSA MOTT (SBN 184606)
vmott@martensonlaw.com
MARTENSON, HASBROUCK & SIMON LLP
600 Anton Blvd., Suite 1250
Costa Mesa, CA 92626
Telephone: (760) 683-8499
Facsimile: (442) 244-0821

Attorney for Defendant United Parcel Service, Inc.

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGWANFORBI,

Plaintiff,

vs.

UNITED PARCEL SERVICE, INC.; and DOES 1 through 10, inclusive,

Defendants.

Case No.: 2:26-cv-02847-DAD-CKD

DEFENDANT UNITED PARCEL SERVICE INC.'S CONSENT MOTION FOR EXTENSION OF TIME TO FILE REPLY IN SUPPORT OF ITS MOTION TO DISMISS

Judge: Hon. Dale A. Drozd
Magistrate Judge: Hon. Carolyn K. Delaney

Action Filed: Removed from Superior Court for the State of California for the County of San Joaquin on August 20, 2026

Defendant United Parcel Service, Inc. ("UPS"), pursuant to Fed. R. Civ. P. 16(b)(4), hereby submits this Consent Motion for Extension of Time to File Reply Brief in Support of its 12(b)(6) Motion to Dismiss ("Motion to Dismiss") as follows:

1. UPS filed their Motion to Dismiss with the United States District Court Eastern District of California on August 26, 2026. [Doc. 7].
2. Plaintiff filed a response to the Motion to Dismiss on August 28, 2026, and UPS' deadline to file a reply is September 7, 2026 [Doc. 8].
3. UPS has not previously requested an extension of the deadlines in this lawsuit.
4. UPS's counsel contacted Plaintiff on September 4, 2026, seeking his consent for the extension. Plaintiff stated that he does not consent to an extension.
5. UPS is respectfully requesting that the time for UPS to submit a Reply brief be extended until and including September 14, 2026.
6. A scheduling order may be modified on a showing of good cause and with the Court's consent. Fed. R. Civ. P. 16(b)(4).
7. Good cause exists to extend the deadline for UPS to file its Reply brief because of UPS counsel's personal matters, including but not limited to non-refundable, pre-planned travel for the upcoming holiday weekend.
8. The request will not prejudice Plaintiff because the hearing for this Motion is presently scheduled for October 5, 2026.

WHEREFORE, UPS respectfully requests that the Court grant the requested extension, up to and including September 14, 2026, to file a Reply brief in Support of its Motion to Dismiss.

DATE: September 4, 2026

MARTENSON, HASBROUCK & SIMON LLP

By: /s/*Vanessa W. Mott*

Vanessa W. Mott

Attorneys for Defendant
UNITED PARCEL SERVICES, INC.

VANESSA W. MOTT (SBN 184606)
vmott@martensonlaw.com
MARTENSON, HASBROUCK & SIMON LLP
600 Anton Boulevard, Suite 1250
Costa Mesa, CA 92626
Telephone: (279) 895-6501

Attorneys for Defendant United Parcel Service, Inc.

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGWANFORBI,

Plaintiff,

v.

UNITED PARCEL SERVICE, INC.; and DOES 1 through 10, inclusive,

Defendants.

Case No.: 2:26-cv-02847-DAD-CKD

CERIFICATE OF SERVICE

CERTIFICATE OF SERVICE

I am a citizen of the United States, more than eighteen years old, and not a party to this action. I am employed by the law firm Martenson, Hasbrouck & Simon LLP, and my business address is 600 Anton Boulevard, Suite 1250, Costa Mesa, California 92626

On **September 4, 2026**, I served true copies of the following document(s):

1. **DEFENDANT UNITED PARCEL SERVICE INC.'S CONSENT MOTION FOR EXTENSION OF TIME TO FILE REPLY IN SUPPORT OF ITS MOTION TO DISMISS**

in the following manner(s):

X	**(By Mail)**	By placing said document(s) in a sealed envelope with postage thereon fully prepaid, for collection and mailing following our ordinary business practices. I am readily familiar with Martenson, Hasbrouck & Simon LLP's practice for collecting and processing correspondence for mailing. On the same day that correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service.
	(By Hand Delivery)	By causing such document(s) to be delivered by hand to the addresses shown below via messenger.
	(By Overnight Delivery)	By placing said document(s) in a sealed envelope, postage prepaid, and depositing said envelope for delivery to a facility regularly maintained by United Parcel Service for overnight delivery.
	(By Email or E-Service)	By causing such document(s) to be emailed or electronically transmitted to the email addresses listed below, pursuant to a court order, an agreement of the parties, or other permissible reason.

On the following interested part(ies) in this action:

Brendan Ngehsi Newanforbi 1455 Cat Tail Drive Stockton, CA 95204 Telephone: (209) 801-4442 bnn.cdla@gmail.com	

I declare under penalty of perjury under the laws of the State of California that the above is true and correct. Executed on **September 4, 2026**.

Elaine Nguyen